**Revision Date:**
09/01/2019

**Background:**
This section contains information for establishing the MFBU of registered domestic partnership cases in accordance with the California Domestic Partner Rights and Responsibilities Act of 2003 [Assembly Bill (AB) 205]. Effective January 1,2005, AB 205 extends the rights and responsibilities of a spouse to RDP under state law.

Effective January 1, 2012, AB 641 extends spousal impoverishment undue hardship provisions to same-sex spouses and RDP with a spouse or partner receiving nursing facility level of care.

In addition to the reformatting, this section has been revised for clarification, and Registered Domestic Partners (RDP) Household (HH) Composition Examples, Appendix A moved to Desk Aid 96.

**Policy:**
**A. Definition of Registered Domestic Partnership**
A registered domestic partnership exists when one of the following conditions is met:

| Condition | Description |
|---|---|
| A | Two individuals of the same sex file a notarized Declaration of Domestic Partnership (DDP)with the Secretary of State. |
| B | Two individuals of the opposite sex file a notarized DDP with the Secretary of State and one or both of the individuals:<br>• is/are over the age of sixty-two) AND<br>• meets the Social Security Act eligibility requirement for Title II old-age insurance benefits or Title XVI for aged individual |
| C | Legal union between two persons of the same sex, other than marriage, that was validly formed in another state |

**B. Verification of Registered Domestic Partnership**
Just as a marriage certificate is not required of a married couple, RDPs are not required to document their status. RDPs only need to indicate on the application that they are domestic partners and sign under penalty of perjury.

**C. Case Processing**
Access to Medi-Cal applications and eligibility determinations that are appropriate to a spouse shall also be provided to RDP. The addition of an RDP to the household of a beneficiary shall be treated the same as that of adding a new spouse to the household of a beneficiary. Adequate and timely notice must be provided for any adverse action.

**D. Medi-Cal Eligibility Impact**
At present, federal law does not recognize registered domestic partnerships. With the exception of Spousal Impoverishment, it does not provide federal reimbursement for Medicaid (Medi-Cal in California) expenditure based on these partnerships.

Therefore, RDPs shall be treated as:

- Unmarried individuals for the purpose of determining eligibility to any federal Medi-Cal programs other than Spousal Impoverishment (SI)
- Married couples for the purpose of determining eligibility to **state-only funded Medi-Cal** programs that are not based on federal law
- Children shall continue to link the parent(s) to Medi-Cal

**E. MAGI**

Although, RDP's may not file jointly under tax law, like married couples, community income will be divided equally between the two RDPs and count in the tax filing of each RDP. To ensure that income is fully included and accurately divided, both RDPs must be included on the Medi-Cal application and also for purposes of other program eligibility determinations.

**F. State-only funded Medi-Cal Programs**

State-only funded Medi-Cal programs not based on federal law are limited to:

| Program Title | Aid Codes |
|---|---|
| Dialysis | 71 |
| Total Parenteral Nutrition (TPN) | 73 |
| Medically Indigent Adults Long Term Care (LTC | 53 |
| Minor Consent | 7M, 7N, 7P, 7R |
| State funded Breast and Cervical Cancer Treatment (BCCTP) | |

**G. MFBU Composition**

- Each RDP shall establish his/her own federal Medi-Cal eligibility without considering the presence of the other RDP.
- If one or both of the RDP is/are also the natural or adoptive parents, then the child(ren) may serve as linkage to the parent(s) without regard to their RDP status.
- If one RDP is claiming the other as a dependent, the RDP claiming the other RDP may have both RDPs in their HH. The tax dependent RDP that is claimed, will be in their HH without the other RDP because they then meet the exception for the application of the non-filer rules.
- When there is no federal eligibility, treat the RDPs as spouses and evaluate if they are eligible for one of the state-only funded Medi-Cal programs.
- Per MPG Article 1 Section 1, a "parent" is defined as the natural or adoptive parent of child. Parentage may also be established when the name of both RDPs appear on the child's birth certificate.

Refer to Desk Aid 96 Registered Domestic Partners (RDP) Household (HH) Composition Examples

**H. Eligibility Determination**

The following procedures shall be used in determining Medi-Cal eligibility for applicant(s) or beneficiaries who are RDPs. For the table below, references to "parent" means natural/adoptive parent of child(ren). Parentage may also be established when the name of both RDPs appears on the child's birth certificate.

| Step | Action |
|---|---|
| 1 | Determine if the RDP qualifies for any federal Medi-Cal program based on his/her own information. |

| If RDPs… | Then… |
|---|---|
| do not have child(ren), | Treat RDPs as unmarried adult male or female. |
| have mutual or adopted child(ren), | • Treat RDPs as unmarried parents.<br>• Both parents shall be responsible for mutual child(ren).<br>• Children with deprivation may continue to serve as linkage for the parents |
| have separate child(ren), | • Treat RDPs as unmarried parent(s).<br>• Each RDP shall be responsible for his/her natural/adopted child(ren).<br>• Children with deprivation may continue to serve as linkage for the parents. |

| Step | Action |
|---|---|
| 2 | If there is no eligibility to federal Medi-Cal programs, check for eligibility within the state-only programs and treat RDP as spouses. |
| 3 | Send appropriate Medi-Cal notices upon determination of Medi-Cal eligibility or ineligibility. |

## I. Long-Term Care

A RDP in LTC with no federal linkage (i.e., aged, blind or disabled) will have his/her eligibility determined under state-only Medically Indigent Adults in Long-Term-Care (LTC)program (Aid Code 53), with or without a SOC. If his/her RDP is not in LTC, SI provisions apply. The RDP who is not in LTC is considered the community spouse.

Effective January 1, 2012, when the institutionalized RDP turns 65 or is determined to be disabled, SI provisions will continue to apply.

In situations where both applicants are institutionalized RDPs, then the SI provisions do NOT apply and the division of community property rules will apply.

## J. Board and Care

Individuals who reside in a board and care facility are not eligible under the state-only LTC program. Workers will determine eligibility for two RDPs in board and care as individuals or determine whether eligibility exists for one of the other state-only programs.

## K. Situations Involving CalWORKs

**When one of the RPD is not the parent of the children**

- Non-parent RDPs shall be evaluated for eligibility to federal and state-only Medi-Cal programs based on his/her own information.
- The income or property of the CalWORKs eligible parent RDP shall not be counted in the non-parent RDP Medi-Cal evaluation.

- Aid code 3S shall be used for the CalWORKs AU members who only qualify for CalWORKs but do not qualify for CalWORKs-linked Medi-Cal.
- When the non-parent RDP must be included in the AU for the parent RDP and children to be income eligible for CalWORKs, then the parent RDP and children must be granted CalWORKs under 3S aid code and Medi-Cal under 3N aid code.

**When both RDPs are the parents of the children**

- If all are income ineligible for CalWORKs, a separate Medi-Cal evaluation must be completed with the RDP parents as an unmarried couple with mutual/adopted children.

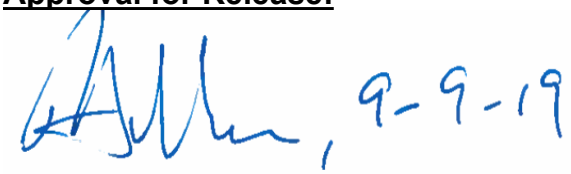
**Program Impact:**
No Impact

**Automation Impact:**
None

**References:**
ACWDL 09-03, 12-36, 14-28, 17-03, 18-19, 19-15

**Sunset Date:**
This policy will be reviewed for continuance by 09/30/2022

**Approval for Release:**




Rick Wanne, Director
Eligibility Operations